

Case :- WRIT - C No. - 4192 of 2021

Petitioner :- Smt. Kaisher Jahan

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Mohammad Abid Ali, Mohd Irteqa

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner and Sri N. K. Tiwari, learned counsel for respondent nos.1 to 3.

Instant writ petition has been filed seeking following reliefs :

“(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned demand notice dated 02.11.2020 and 25.11.2020, issued by respondent no.2 (Contained in Annexure No.2 and 4 to the writ petition).

(ii) Issue a writ, order or direction in the nature of mandamus commanding/directing the respondents to decide the matter afresh considering the objection of the petitioner dated 11.12.2020 (Contained in Annexure No.2 to the writ petition).”

Submission of learned counsel for the petitioner is that petitioner has obtained a electricity connection of 2 K.V. at her house and she paid the electricity bills from time to time, but all of a sudden on 07.12.2020 she had received a demand notice dated 02.11.2020 wherein it was mentioned that on 26.09.2020 a provisional notice was sent to her for assessment of Rs.44,518/-. It is submitted that petitioner had never received any provisional assessment notice. It is contended that after receipt of demand notice, petitioner came to know about the recovery proceedings, then she had sent a registered objection on 11.12.2020, which is appended as Annexure-3 to the writ petition. It is further contended that respondent-Power Corporation has not proceeded in accordance with the provisions contained in Section 126 (3) of the Act, 2003 and Clause 6.8/8.1 of

the Electricity Supply Code, 2005 (in short ' Code, 2005') while making final assessment, as no opportunity of hearing has been afforded to the petitioner.

However, learned counsel appearing on behalf of respondent-Power Corporation has fairly conceded that the provisional assessment dated 26.09.2020 was made on the basis of inspection conducted on 15.09.2020 but the same was communicated to the petitioner through registered post on 20.10.2020 pursuant to which demand notice dated 02.11.2020 was sent to the petitioner on 03.12.2020. However, demand notice has been issued without completion of 15 days notice period. He had not disputed the fact that final assessment has been made without giving any opportunity of hearing to the petitioner. He has supplied the copies of requisite documents to the learned counsel for the petitioner today in the Court itself.

We are not at all convinced that despite the objection made to the provisional assessment it shall be treated as final assessment without considering or giving any opportunity of hearing.

At this stage, we deem it proper to reproduce paragraph 16 of the judgment passed in the case of **Shishir Jain vs. Paschimanchal Vidyut Vitran Nigam Ltd. and another, 2017 (3) AWC 3084** by a Division Bench of this Court. The relevant paragraph 16 of aforesaid judgment reads as under :

“16. Be that as it may, in case there is no final assessment as suggested by the learned counsel for the respondent, the petitioner cannot be compelled to deposit the amount of provisional assessment. Without making final assessment after considering the objection and giving opportunity to the petitioner, he cannot be compelled to deposit any amount. In such circumstances, the two impugned notices dated 4.3.2017 issued by respondent no.2 are not liable to be sustainable and are hereby quashed.”

In view of aforesaid, we are of the opinion that petitioner could not be compelled to deposit any amount on the basis of provisional assessment without

affording any opportunity of hearing, while making final assessment. The entire procedure adopted by respondent-Power Corporation de hors the statutory provisions of Section 126 of the Act, 2003 and Clause 6.8/8.1 of the Code, 2005. The Clause 8.1 of the Code, 2005 provides the procedure to be adopted by the licensee for inspection, provisional assessment, hearing and final assessment in the case of theft of electricity. In the present case, amount which is mentioned in the provisional assessment has been treated as final assessment without affording any opportunity of hearing, hence, the same is in violation of principles of natural justice.

Considering the facts and circumstances of the case, but without entering into the merits of the case, the writ petition is disposed of directing the petitioner to move a fresh representation before respondent no.2 within two weeks, who shall consider and decide the same by passing an appropriate, reasoned and speaking order, after giving due opportunity of hearing to the petitioner, as expeditiously as possible, preferably within a period of four weeks thereafter.

For a period of four weeks from today or till final decision on petitioner's representation, whichever is earlier, the impugned notices dated 02.11.2020 and 25.11.2020 shall be kept in abeyance.

It is made clear that if the petitioner fails to file the representation as directed above, she will not be entitled to get benefit of this order.

Order Date :- 9.2.2021
Manish Himwan